

# STRIDE BIOMETRICS, LLC

## CONFIDENTIALITY AND NON-DISCLOSURE AGREEMENT

*California — Prospective and Current Team Members*

This Confidentiality and Non-Disclosure Agreement (this “**Agreement**”) is entered into between **Stride Biometrics, LLC** (the “**Company**”) and the individual identified as “**Recipient**” in the signature block below. This Agreement is effective on the date of the last signature below (the “**Effective Date**”).

### BACKGROUND

The Company develops technology, products, services, and intellectual property relating to biomechanics, movement and performance analysis, software, data, and related fields. In connection with Recipient’s evaluation of, preparation for, or participation in a potential or actual relationship with the Company, the Company may disclose or make available valuable nonpublic information. The parties therefore agree as follows:

### 1. PURPOSE

Recipient may access Confidential Information solely to evaluate, establish, or perform an authorized relationship with the Company as a prospective or actual employee, contractor, consultant, advisor, intern, volunteer, founder, or other team member, and for other activities expressly authorized by the Company (the “**Purpose**”).

### 2. CONFIDENTIAL INFORMATION

**2.1 Definition. “Confidential Information”** means nonpublic information disclosed or made available by or on behalf of the Company before, on, or after the Effective Date, whether communicated orally, visually, electronically, in writing, through access to systems or facilities, or in any other form, that is marked confidential or that a reasonable person would understand to be confidential given its nature or the circumstances of disclosure.

Confidential Information includes, without limitation:

- Product concepts, features, designs, prototypes, specifications, technical requirements, research, experiments, validation results, development plans, and roadmaps;
- Inventions, discoveries, improvements, algorithms, formulas, methods, processes, techniques, system architecture, source code, object code, APIs, software, firmware, models, model weights, prompts, training and evaluation methods, datasets, data schemas, analytics, and technical know-how;
- Unpublished patent applications, provisional applications, invention disclosures, patent drafts, claim strategies, prosecution strategies, prior-art analyses, patentability analyses, and nonpublic information concerning inventions or improvements;
- Trade secrets as defined by applicable law and information subject to reasonable measures intended to preserve its secrecy;
- Security controls, credentials, access methods, vulnerabilities, infrastructure, incident information, and internal documentation;
- Business plans, financial information, budgets, forecasts, pricing, fundraising information, investor information, capitalization information, go-to-market plans, customer and prospective-customer information, user information, vendor information, and partnership discussions;
- Personal information, health-related information, research-participant information, and other data the Company is required or has agreed to protect;
- Confidential information belonging to a customer, partner, licensor, vendor, or other third party that the Company is obligated to protect; and

- Notes, summaries, analyses, extracts, copies, prototypes, or other materials containing, reflecting, or derived from any of the foregoing.

**2.2 No Marking Requirement.** Failure to mark information “confidential” does not remove its protection when the information otherwise satisfies Section 2.1.

### 3. EXCLUSIONS

Confidential Information does not include information that Recipient can establish through competent evidence:

- Was lawfully known to Recipient, without a duty of confidentiality, before the Company disclosed it;
- Becomes publicly available through no breach of this Agreement or other wrongful act by Recipient or any person acting with Recipient;
- Is received lawfully from a third party that Recipient reasonably believes has the right to disclose it without a confidentiality duty;
- Is independently developed by Recipient without use of or reference to Confidential Information; or
- Is specifically approved in writing by the Company for public release, but only to the extent and for the purpose approved.

Information disclosed in an issued patent or published patent application is public and is not Confidential Information. This exclusion does not apply to unpublished applications, undisclosed inventions or improvements, implementation details, know-how, source code, experimental results, or other nonpublic information not revealed by the publication.

Confidential Information does not include Recipient’s general skill, knowledge, experience, and abilities retained without deliberate memorization or unauthorized retention of Company materials, except to the extent they constitute the Company’s trade secrets under applicable law.

### 4. RECIPIENT’S DUTIES

Recipient shall:

- Use Confidential Information only for the Purpose and not for Recipient’s personal benefit or the benefit of another person or entity;
- Protect Confidential Information using at least reasonable care and no less care than Recipient uses to protect similarly sensitive information;
- Disclose Confidential Information only to Company personnel who are authorized to receive it and have a need to know it for the Purpose, or as otherwise expressly authorized in writing by the Company;
- Not copy, download, reproduce, transmit, publish, upload, remove, or retain Confidential Information except as reasonably necessary for the Purpose and consistent with Company instructions;
- Comply with the Company’s reasonable information-security, access-control, records-management, and privacy requirements communicated to Recipient;
- Not access Company systems, accounts, repositories, facilities, or information beyond the access expressly authorized by the Company;
- Promptly notify the Company of any suspected loss, unauthorized access, acquisition, use, or disclosure of Confidential Information and reasonably cooperate in mitigation; and
- Remain responsible for safeguarding credentials, devices, media, and materials through which Recipient accesses Confidential Information.

Recipient may disclose Confidential Information to Recipient’s attorney or tax adviser when reasonably necessary to obtain professional advice concerning this Agreement, provided the adviser is bound by a professional or contractual duty of confidentiality. Recipient remains responsible for any disclosure by an adviser that would violate this Agreement if made by Recipient.

## 5. LEGALLY REQUIRED DISCLOSURE

If Recipient is required by subpoena, court order, or other valid legal process to disclose Confidential Information, Recipient may disclose only the portion legally required. Unless prohibited by law, Recipient shall give the Company prompt written notice sufficient to allow the Company to seek a protective order or other remedy and shall reasonably cooperate, at the Company's expense, in seeking confidential treatment. This Section does not apply to a disclosure protected by Section 9, for which no notice to or authorization from the Company is required.

## 6. RETURN, DELETION, AND PRESERVATION

Upon the Company's request or the end of Recipient's relationship with the Company, whichever occurs first, Recipient shall promptly stop using and return or permanently delete all Confidential Information in Recipient's possession, custody, or control, including copies and derived materials. At the Company's request, Recipient shall confirm compliance in writing.

Recipient need not delete information maintained automatically in routine system backups that Recipient cannot reasonably access or selectively delete, or one archival copy retained solely when required by law, provided that Recipient does not access or use the retained information and continues to protect it under this Agreement.

Nothing in this Section requires destruction of evidence subject to a legal-preservation obligation or prevents Recipient from retaining documents reasonably necessary to exercise rights protected by Section 9.

## 7. OWNERSHIP; NO LICENSE OR IP ASSIGNMENT

As between the parties, Confidential Information remains the property of the Company or the applicable third-party owner. No disclosure grants Recipient any license or other right under any patent, copyright, trade secret, trademark, or other intellectual-property right except the limited right to use Confidential Information for the Purpose.

This Agreement does not itself assign inventions or work product. Any invention or work-product assignment must be set out in a separate written agreement that complies with applicable law.

## 8. TERM AND SURVIVAL

This Agreement begins on the Effective Date. Recipient's obligations for Confidential Information other than trade secrets continue for five (5) years after each disclosure. Obligations concerning a trade secret continue for as long as the information remains a trade secret under applicable law.

If information ceases to qualify as Confidential Information under Section 3, Recipient's obligations concerning that information end, except to the extent the information remains protected by another applicable duty or law.

## 9. PROTECTED RIGHTS AND DISCLOSURES

**9.1 Government, Regulatory, and Legal Reports.** Nothing in this Agreement prohibits or restricts Recipient from communicating with, filing a charge or complaint with, providing documents or other information to, or participating in an investigation or proceeding conducted by any federal, state, or local government agency, regulator, legislative body, self-regulatory organization, or law-enforcement authority. This includes the Securities and Exchange Commission, Equal Employment Opportunity Commission, National Labor Relations Board, Department of Labor, Occupational Safety and Health Administration, California Civil Rights Department, and California Labor Commissioner.

Recipient does not need the Company's prior authorization to engage in these activities and is not required to notify the Company. Nothing in this Agreement limits Recipient's right to receive an award or other relief for information provided to a government agency where applicable law permits it.

**9.2 Workplace Rights.** Nothing in this Agreement prevents Recipient from discussing wages, hours, or working conditions; engaging in protected concerted activity; assisting coworkers; communicating with a labor organization; or exercising any other right protected by the National Labor Relations Act or applicable law.

**Nothing in this Agreement prevents you from discussing or disclosing information about unlawful acts in the workplace, such as harassment or discrimination or any other conduct that you have reason to believe is unlawful.**

Nothing in this Agreement is intended to restrict a disclosure that is protected under California Labor Code sections 232, 232.5, or 1102.5, California Government Code section 12964.5, the federal Speak Out Act, or another applicable law.

**9.3 Federal Trade-Secret Immunity Notice.** Under 18 U.S.C. section 1833(b), an individual will not be held criminally or civilly liable under federal or state trade-secret law for disclosing a trade secret: (a) in confidence, directly or indirectly, to a federal, state, or local government official or to an attorney, solely to report or investigate a suspected violation of law; or (b) in a complaint or other document filed under seal in a lawsuit or other proceeding.

An individual who files a retaliation lawsuit for reporting a suspected violation of law may disclose the trade secret to the individual's attorney and use the trade-secret information in the proceeding if the individual files any document containing the trade secret under seal and does not disclose the trade secret except under court order.

**9.4 No Restriction on Lawful Work.** This Agreement is a confidentiality agreement, not a noncompetition agreement. It does not prohibit Recipient from engaging in any lawful profession, trade, or business; accepting work from another person; or using general skill, knowledge, experience, and abilities that do not constitute or reveal the Company's trade secrets or other protectable Confidential Information. This Agreement shall not be interpreted or enforced as a post-employment restraint prohibited by California Business and Professions Code section 16600.

**9.5 Controlling Effect.** If another provision of this Agreement conflicts with this Section 9, this Section 9 controls. The Company will not interpret or enforce this Agreement to interfere with rights that cannot lawfully be waived.

## **10. REMEDIES**

Recipient acknowledges that unauthorized use or disclosure of Confidential Information may cause harm for which monetary damages may be inadequate. Subject to applicable law, the Company may seek temporary, preliminary, or permanent injunctive relief and any other remedy available at law or in equity. Nothing in this Section creates a presumption of irreparable harm, eliminates any required showing, or limits a court's discretion.

## **11. NO REPRESENTATION OR COMMITMENT**

The Company is not required to disclose any particular information, and Confidential Information is provided without a representation or warranty as to completeness or accuracy except as stated in a separate written agreement.

This Agreement does not require either party to begin or continue an employment, contractor, advisory, investment, partnership, or other relationship. It does not create a partnership, joint venture, fiduciary relationship, agency relationship, or promise of compensation.

## **12. NOTICES**

Formal notices under this Agreement must be in writing and delivered personally, by nationally recognized overnight courier, or by email with confirmation of transmission to the address listed below or to an updated address provided by written notice. Notice is effective upon personal delivery, one business day after deposit with an overnight courier, or upon confirmed email transmission.

### 13. GOVERNING LAW AND VENUE

California law governs this Agreement without regard to conflict-of-law rules, except where federal law applies. Subject to any nonwaivable right or forum required by law, the state and federal courts located in the California county identified in the Company signature block shall have exclusive jurisdiction over disputes arising from this Agreement, and each party consents to personal jurisdiction and venue there.

### 14. ASSIGNMENT

Recipient may not assign this Agreement without the Company's prior written consent. The Company may assign this Agreement to an affiliate or in connection with a merger, reorganization, financing, change of control, or transfer of all or substantially all of the business or assets to which the Confidential Information relates. Subject to the foregoing, this Agreement binds and benefits the parties and their permitted successors and assigns.

### 15. GENERAL TERMS

**15.1 Entire Agreement.** This Agreement is the complete agreement concerning its subject matter and supersedes prior or contemporaneous discussions and agreements concerning that subject matter. A separate signed agreement may impose additional lawful confidentiality duties.

**15.2 Amendment and Waiver.** An amendment or waiver must be in a writing signed by the party against whom it is asserted. A delay or failure to enforce a provision is not a waiver.

**15.3 Severability.** If a court finds a provision invalid or unenforceable, the provision shall be severed or limited only to the minimum extent permitted by law, and the remainder shall remain effective. No provision shall be rewritten or enforced to impose a restraint prohibited by California law.

**15.4 Counterparts and Electronic Signatures.** The parties may sign this Agreement in counterparts, including through a legally valid electronic-signature service or electronic copy. Each counterpart is an original, and all counterparts together form one instrument.

**15.5 Headings and Interpretation.** Headings are for convenience only. "Including" means "including without limitation." This Agreement shall be interpreted fairly according to its terms and not against either party as drafter.

## ACKNOWLEDGMENT AND SIGNATURES

Recipient acknowledges having read and understood this Agreement and having had an opportunity to consult independent legal counsel before signing.

### STRIDE BIOMETRICS, LLC

By (signature): \_\_\_\_\_

Printed name: \_\_\_\_\_

Title: \_\_\_\_\_

Date: \_\_\_\_\_

Notice email: \_\_\_\_\_

Mailing address: \_\_\_\_\_

\_\_\_\_\_

California county for venue: \_\_\_\_\_

### RECIPIENT

Signature: \_\_\_\_\_

Full legal name: \_\_\_\_\_

Relationship/role: \_\_\_\_\_

Date: \_\_\_\_\_

Notice email: \_\_\_\_\_

Mailing address: \_\_\_\_\_

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